

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JACOB CARRASQUILLO,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. FABRIZIO LUCCHESI, Shield No. 30036 (Tax Id. No. 967173), Individually and in his Official Capacity, P.O. JONATHAN GALINDOSANCHEZ, Shield No. 23267 (Tax Id. No. 964005), Individually and in his Official Capacity, P.O. ANGELO MARTINO, Shield No. 23305 (Tax Id. No. 964145), Individually and in his Official Capacity, SGT. ANDREW HONG, Shield No. 1035 (Tax Id. No. 953972), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
March 19, 2021

COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St., Suite 3200
New York, N.Y. 10022
(212) 374-9115

TO:

JAMES E. JOHNSON
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County
as the place of trial.

The basis of venue is:
CPLR § 504(3)

P.O. FABRIZIO LUCCHESI, Shield No. 30036 (Tax Id. No. 967173)

90th Precinct

211 Union Ave.

Brooklyn, New York

112111

P.O. JONATHAN GALINDOSANCHEZ, Shield No. 23267 (Tax Id. No. 964005)

90th Precinct

211 Union Ave.

Brooklyn, New York

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P.O. ANGELO MARTINO, Shield No. 23305 (Tax Id. No. 964145)

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SGT. ANDREW HONG, Shield No. 1035 (Tax Id. No. 953972)

90th Precinct

211 Union Ave.

Brooklyn, New York

112111

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

JACOB CARRASQUILLO,

Plaintiff,

-against-

VERIFIED COMPLAINT

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

THE CITY OF NEW YORK, P.O. FABRIZIO LUCCHESI, Shield No. 30036 (Tax Id. No. 967173), Individually and in his Official Capacity, P.O. JONATHAN GALINDOSANCHEZ, Shield No. 23267 (Tax Id. No. 964005), Individually and in his Official Capacity, P.O. ANGELO MARTINO, Shield No. 23305 (Tax Id. No. 964145), Individually and in his Official Capacity, SGT. ANDREW HONG, Shield No. 1035 (Tax Id. No. 953972), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

Plaintiff JACOB CARRASQUILLO by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

FACTS

1. Plaintiff JACOB CARRASQUILLO is a Hispanic/Latino male and has been at all relevant times a resident of Kings County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, P.O. LUCCHESI, Shield No. 30036 (Tax Id. No. 967173), P.O. GALINDOSANCHEZ, Shield No. 23267 (Tax Id. No. 964005), P.O. ANGELO MARTINO, Shield No. 23305 (Tax Id. No. 964145), SGT. ANDREW HONG, Shield No. 1035 (Tax Id. No. 953972), and POLICE OFFICERS "JOHN DOE" #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about January 6, 2020, in the County of Kings, City, and State of New York, plaintiff JACOB CARRASQUILLO was lawfully present in the vicinity of 16 Ten Eyck St. Brooklyn, NY.

9. At approximately between 9:00 p.m. and 10:00 p.m., plaintiff was at the aforementioned location when he was accosted by several members of the NYPD, including defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10.

10. At the time of this incident, plaintiff was mentally impaired by psychological issues and/or intoxicated by some unknown substance.

11. As a result, defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 placed plaintiff under arrest by handcuffing his arms tightly behind his back and then searched his person and effects.

12. However, no contraband was found on plaintiff nor recovered from his person or effects as a result of this search, nor did he have custody or control over any contraband.

13. At no time on January 6, 2020, did defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess probable cause and/or reasonable suspicion to search plaintiff’s person or effects nor did they obtain voluntary consent from him to do so.

14. At no time on January 6, 2020, did defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s persons or effects.

15. At no time on January 6, 2020, did defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

16. At no time on January 6, 2020, did defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

17. Nonetheless, defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10 placed plaintiff in handcuffs and attempted to transport plaintiff to Woodhull Hospital to get evaluated as an emotionally disturbed person.

18. Prior to being admitted at the hospital, plaintiff was assaulted and subjected to unjustified and unreasonable force by defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10, who caused him severe injury to his foot, ankle, and leg, and also punched him and kicked him multiple times about the body.

19. This unjustified assault of plaintiff occurred while plaintiff was restrained in handcuffs.

20. At no time was the force used against plaintiff by defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10 reasonable and/or justified.

21. Subsequently, once defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10 brought plaintiff into the hospital, he was handcuffed to a hospital gurney and held for several hours for treatment before he was released back into the custody of the defendant officers.

22. Thereafter, plaintiff was transported to a nearby police precinct where upon information and belief, he was searched, fingerprinted, photographed, questioned, confined against his will in a holding cell for several hours, and charged with crimes by defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10.

23. Specifically, plaintiff was charged with Assault, Attempted Assault, Harassment, Burglary, Criminal Mischief, Obstructing Governmental Administration, and Criminal Trespass.

24. Upon information and belief, after being detained at the aforementioned precinct for several hours plaintiff was transported to Central Booking where he was searched and further detained in holding cells for several hours.

25. In connection with plaintiffs’ arrest, defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Kings County District Attorney’s Office. Thereafter, defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff’s arrest. Specifically, defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 falsely stated, *inter alia*, that plaintiff had used his head to hit defendant GALINDOSANCHEZ about the face while plaintiff was in NYPD custody causing him injury and that plaintiff had injured defendant MARTINO while defendant MARTINO was attempting to restrain him.

26. As a result of the foregoing, plaintiff has suffered serious physical injuries, including, but not limited to, a fractured ankle which required multiple surgeries, swelling, and multiple abrasions and lacerations, at least one of which required stitches.

27. In addition, as a result of the foregoing plaintiff has been incarcerated for approximately fourteen (14) months and has made approximately twelve (12) court appearances.

28. Upon information and belief, all charges against plaintiff will be dismissed.

29. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, severe physical injuries, economic injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

30. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

31. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

32. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

33. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

35. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

36. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

37. As a result of the aforesaid conduct by defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

38. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

39. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

40. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff.

41. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s Office – namely, the defendants falsely informed prosecutors *inter alia*, that plaintiff had used his head to hit defendant GALINDOSANCHEZ about the face while plaintiff was in NYPD custody causing him injury and that plaintiff had injured defendant MARTINO while defendant MARTINO was attempting to restrain him.

42. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

43. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

44. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

45. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

46. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 misrepresented and falsified evidence before the Kings County District Attorney.

47. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 did not make a complete and full statement of facts to the District Attorney.

48. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 withheld exculpatory evidence from the District Attorney.

49. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

50. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

51. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.

52. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

53. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

54. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

55. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

56. Specifically, defendants’ LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.

57. Notwithstanding the perjurious and fraudulent conduct of defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10, upon information and belief, the criminal proceedings will terminate in plaintiff’s favor.

58. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

59. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

60. The level of force employed by defendants – upon information and belief, LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 – was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

61. As a result of the foregoing, plaintiff sustained, inter alia, bodily injuries which required medical treatment, including, but not limited to, a fractured ankle which required multiple surgeries, swelling, and multiple abrasions and lacerations, at least one of which required stitches.

SIXTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

62. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

63. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the use of excessive force and by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff’s arrest throughout all phases of the criminal proceedings.

64. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when

they failed to intercede and prevent the violation or further violation of plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

65. As a result of the defendants' failure to intercede when plaintiff's constitutional rights were being violated in defendants' presence, plaintiff sustained, *inter alia*, physical and emotional injuries, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SEVENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

66. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

67. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

68. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. being deliberately indifferent towards individuals that are mentally impaired and/or intoxicated and failing to train officers in how to handle mentally impaired and/or intoxicated individuals; and,
- B. being deliberately indifferent towards and/or failing to train officers in how to deescalate incidents involving mentally impaired and/or intoxicated individuals; and,
- C. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,

- E. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- F. handcuffing all hospitalized prisoners for the entirety of their hospitalization regardless of their risk of flight or safety risk to others; and,
- G. utilizing excessive force in effectuating arrests; and,
- H. keeping arrestees handcuffed during hospitalization even when they pose no risk of flight or danger to the safety of others; and,
- I. failing to intercede to prevent violations of plaintiff's constitutional rights; and,
- J. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- K. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

69. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

70. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

71. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

72. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

73. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

74. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

PENDANT STATE CLAIMS

75. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

76. On or about February 27, 2020, and within (90) days after the claims herein accrued, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

77. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof as to either Notice of Claim and more than thirty (30) days have elapsed since the presentation of such claims as aforesaid.

78. Defendant THE CITY OF NEW YORK demanded a hearing as to this claim pursuant to General Municipal Law § 50-h but such hearing has not yet taken place.

79. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

80. Plaintiff has and/or will comply with all conditions precedent to maintaining the instant action.

81. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

82. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

83. The aforementioned actions of defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

84. As a result of defendants’ LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

85. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

86. Defendant police officers LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 touched plaintiff in a harmful and offensive manner.

87. Defendant police officers LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10 did so without privilege or consent from plaintiff.

88. As a result of defendants' LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST/FALSE IMPRISONMENT**

89. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

90. Defendant police officers LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10 arrested plaintiff in the absence of probable cause and without a warrant.

91. As a result of the aforesaid conduct by defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

92. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and humiliated and subjected to handcuffing and other physical restraints by defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10.

93. Plaintiff was conscious of said confinement and did not consent to same.

94. The confinement of plaintiff by defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10, was without probable cause and was not otherwise privileged.

95. The aforesaid actions by defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10 constituted a deprivation of the plaintiff's rights.

96. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

97. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

98. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

99. The aforementioned conduct was committed by defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

100. The aforementioned conduct was committed by defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS "JOHN DOE" #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

101. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

102. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

103. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

104. On January 6, 2020, defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 commenced a criminal proceeding against plaintiff.

105. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 lacked probable cause to commence said criminal proceeding against plaintiff.

106. Defendants LUCCHESI, GALINDOSANCHEZ, MARTINO, HONG, and/or POLICE OFFICERS “JOHN DOE” #1-10 were motivated by actual malice in commencing said criminal proceeding against plaintiff.

107. From January 6, 2020 through the present, plaintiff was forced, and continues to be forced, to repeatedly make appearances in Criminal Court to defend himself against the unlawful prosecution initiated by defendants.

108. As a result of the malicious prosecution against him, plaintiff has spent approximately fourteen (14) months making court appearances.

109. Upon information and belief, the criminal prosecution against plaintiff will terminate in his favor and all charges against him will be dismissed.

110. As a result of the aforementioned conduct, plaintiff suffered mental and physical injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

111. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

112. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

113. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

114. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
March 19, 2021

BY: _____/S_____

ILYSSA FUCHS
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JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
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ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff JACOB CARRASQUILLO in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
March 19, 2021

_____/S_____
ILYSSA S. FUCHS